

TENTATIVE RULING(S) FOR AUGUST 5, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2516898

Turner v. GM

TENTATIVE RULING(S):

Before the Court is Plaintiff's Motion for Attorney's Fees and Costs totaling \$21,696.78. This figure includes \$16,147.50 in attorney's fees; a lodestar of 0.3, increasing attorney's fees by \$4,844.25; and costs of \$705.03. Defendant GM opposes and Plaintiff replies.

Analysis

Reasonable Hourly Rate. A reasonable hourly rate is one that is prevailing in the community where the case is litigated for similar work. (*MBNA America Bank, N.A. v. Gorman* (2006) 147 Cal.App.4th Supp. 1, 13.)

In reaching the lodestar, a court begins by deciding "the reasonable hours spent" on the case and multiplying that number by "the hourly prevailing rate for private attorneys in the community conducting

noncontingent litigation of the same type.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) “[T]he unadorned lodestar reflects the general local hourly rate for a *fee-bearing case*; it does *not* include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider under *Serrano III*.” (*Id.* at p. 1138 [discussing *Serrano v. Priest* (1977) 20 Cal.3d 25].)

Requested rates are reasonable if they are “within the range of reasonable rates charged by and judicially awarded comparable attorneys for comparable work.” (*Children’s Hosp. & Med. Ctr. v. Bontá* (2002) 97 Cal.App.4th 740, 783.)

Plaintiff claims rates of \$525 per hour for attorney Christopher Urner; \$450 per hour for attorney Jorge L. Acosta; and \$250 per hour for paralegal Mary M. Zazueta. (Acosta Decl., ¶27.) The case was taken on a contingency basis. (Acosta Decl., ¶11.) Attorney Acosta’s declaration provides background and experience for each of the three billers. (Acosta Decl., ¶¶6-10.) Acosta also provides or cites to other materials supporting the rates claimed including the United States Consumer Law Attorney Fee Survey Report from 2017-2018 (noting those rates should be adjusted for inflation) and the Lafey Matrix. (Acosta Decl., ¶¶19-21; Exh. C.)

In opposition, Defendant generally argues the rates claimed are unreasonably high. Included in this portion of Defendant’s brief are contentions that tasks performed by higher billers should have been performed by lower billers, but those arguments do not go to the propriety of the rates themselves in the first instance and are more appropriately addressed when addressing the proper number of hours for which reimbursement is properly awarded.

The rates claimed are reasonable for lemon law cases prosecuted in this legal community. Note, however, these rates already adequately reward counsel for the contingency nature of the representation thus negating the need to apply a multiplier as discussed more fully below.

Reasonable Hours. The starting point for every fee award is calculating an attorney’s services in terms of time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

Counsel’s invoices are attached as Exhibit A to attorney Acosta’s declaration. Attorney Urner claims 7.5 hours; attorney Acosta claims 18.8 hours; and paralegal Zazueta claims 15 hours, for a collective total of 41.3 hours including estimated time to complete prosecution of this fee motion.

As indicated above, Defendant argues the 7.5 hours attorney Christopher Urner billed at \$525 per hour could have been properly performed by attorney Acosta at only \$450 per hour. There is nothing to indicate the time claimed was duplicative, and it is reasonable that two attorneys would both work on this motion.

Similarly, Defendant argues time entries claimed by attorney Acosta on 8/20/25 and 8/26/25 for scheduling matters could have been handled by paralegal Zazueta at a lower rate. These involved emails between counsel, and it was reasonable that counsel would handle these rather than a paralegal.

Defendant next argues counsel spent excessive time on certain tasks given their self-proclaimed skill and experience. Defendant points out examples where both attorneys reviewed Plaintiff's auto service record; paralegal Zazueta billed 1.9 hours to draft initial disclosures and prepare document production, Acosta then billed 0.6 hours to review the compilation, and Zazueta then billed 0.2 hours to finalize the production and create a Dropbox link; Acosta billed 3.1 hours researching applicable technical bulletins and research and drafting a memorandum on the same; and Zazueta and Acosta billed a collective 4 hours to analyze Defendant's initial disclosures. These entries each appear reasonable standing alone, and there is no indication of general overbilling in the invoices. Although lemon law cases are repetitive, counsel is still required to carefully review documents prepared and received.

Defendant also challenges 5.5 hours of anticipated time claimed for the remainder of this fee motion, contending it is entirely precluded under *Karapetian v. Kia Motors Am., Inc.* (C.D. Cal. 2013) 970 F.Supp.2d 1032. However, the District Court did not find such anticipated time categorically unrecoverable. Instead, it criticized the amount of anticipated time claimed and the fact that estimated time was claimed for work done years prior. (*Id.* at pp. 1036-1037.) The anticipated time claimed is reasonable.

In sum, the Court sets the lodestar, inclusive of all attorney, paralegal, and anticipated time, at \$16,147.50—the full amount requested.

Multiplier. Plaintiff seeks a 0.3 multiplier to the lodestar recovery due to the delay in payment, expertise resulting in an excellent recovery, and the contingent risk involved.

The purpose of a multiplier is “to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair

market rate for such services.” (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833.) However, the multiplier cannot apply to the work related to the attorney fee motion. (*Pellegrino v. Robert Half Intern., Inc.* (2010) 182 Cal.App.4th 278, 296.)

“A lawyer who both bears the risk of not being paid and provides legal services is not receiving the fair market value of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will be reluctant to accept fee award cases.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, quoting Leubsdorf, *The Contingency Factor in Attorney Fee Awards* (1981) 90 Yale L.J. 473, 480.) “The purpose of a fee enhancement, or so-called multiplier, for contingent risk is to bring the financial incentives for attorneys enforcing important constitutional rights, such as those protected under the anti-SLAPP provision, into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Id.* at 1132.)

As explained in *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359:

“It has long been recognized, however, that the contingent and deferred nature of the fee award in a civil rights or other case with statutory attorney fees requires that the fee be adjusted in some manner to reflect the fact that the fair market value of legal services provided on that basis is greater than the equivalent noncontingent hourly rate. (*Ketchum v. Moses, supra*, 24 Cal.4th at pp. 1132–1133.) “ ‘A lawyer who both bears the risk of not being paid and provides legal services is not receiving the fair market value of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will be reluctant to accept fee award cases.’ ” (*Id.* at p. 1133, quoting with approval from Leubsdorf, *The Contingency Factor in Attorney Fee Awards* (1981) 90 Yale L.J. 473, 480.) ***The contingency adjustment may be made at the lodestar phase of the court's calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both).*** (*Ketchum v. Moses, supra*, 24 Cal.4th at pp. 1133–1134.)”

(*Horsford v. Board of Trustees of California State University, supra*, 132 Cal.App.4th at 394-395, emphasis added.)

As explained above, the rates already claimed adequately compensate counsel for the contingent nature of the litigation and delay in payment. Although Plaintiff prevailed, the results are not so impressive as to justify an increased award given the routine nature of lemon law cases. Thus, the Court denies Plaintiff’s request for a multiplier.

Costs. Typically, costs are challenged via a motion to tax costs served and filed within 15 days after service of the cost memorandum. (Cal. Rules of Court, rule 3.1700(b).) Here, however, Plaintiff filed

her memorandum of costs concurrently with the motion. Defendant has not affirmatively challenged the \$705.03 in costs claimed, and has not moved to tax. Therefore, the Court grants the request for costs in full.

RULING

Based on the foregoing analysis, the Court rules as follows:

1. Grants Plaintiff's request for attorney's fees exclusive of costs in the amount of \$16,147.50;
2. Denies Plaintiff's request for a multiplier; and
3. Allows costs in the amount of \$705.03.

TENTATIVE RULING(S) FOR AUGUST 5, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2505697

Acosta v. Ford

TENTATIVE RULING(S):

Before the Court is Plaintiffs' Motion for Attorney's Fees, Costs and Expenses. Plaintiffs moved to recover \$9,428 in attorney fees, a 1.3 lodestar multiplier in the amount of \$2,828.40, and \$2,033.39 in costs and expenses, for a total request of \$14,289.79. (Kirnos Decl. ¶ 2.)

Ford opposes and requests that the Court award no more than \$4,582.80 in attorney fees and deny Plaintiffs' request for costs and a multiplier.

Plaintiffs responded that Ford has not established that the requested hourly rates or hours are unreasonable. Plaintiffs also reduce the lodestar by \$172.50 because counsel spent two hours, rather than the anticipated 2.3 hours, reviewing Ford's opposition and preparing the reply and supporting declaration.